TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 2, 2024
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Elliott Barrow, Aaron Butner, Molly Hall, Julian Hopkins.
Absent: Giles Branch, Megan Stevens.
Staff: Kara Browder, Chris Lubert, Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

1. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Hopkins seconded the motion. All in favor.

2. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Hopkins seconded the motion. All in favor.

3. Public Comment
4. General Correspondence

There being no comments, Mr. Wood continued with the agenda. All correspondence was linked to the agenda.

5. Explanation of Procedures
6. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

7. Business

A. Case V-37-24, 1604 Catamaran Court, TMS# 594-05-00-664. Request for relief from §156.201(I)(2)(d) to allow construction of an elevated

walkway within the critical line buffer. The ordinance only allows pedestrian accessways in the critical line buffer if they lead to a water-dependent use such as a dock.

- Ms. Browder reviewed the staff comments with the Board.

- Mr. Chris Moss and Ms. Brenda Heinig, owners, reviewed the request with the Board.

- Mr. Michael Porcaro, 1600 Catamaran Court, stated that his understanding was that a dock permit could be issued for this lot. He suggested that this is a means of trying to get a dock for the property. He stated that the surrounding properties have been denied a permit as well. He expressed concern with the impact to wildlife.

- Mr. Thomas Progar, 2982 River Vista Way, stated that he has taken on the responsibility of keeping the area clean. He stated that he was also told that no other properties would be allowed a dock from OCRM other than the subdivision dock. He expressed concern that the high tide line has moved in approximately 30 feet.

- Mr. Moss rebutted that the walkway would go from the edge of the house approximately 20 feet and would not encroach into the critical line.

- Mr. Wood closed public comment.

- *Mr. Butner moved for denial based on the findings that it does not meet the criteria, particularly that the utilization of the property will not be prohibited if the variance is not granted. Mr. Hopkins seconded the motion. All in favor.*

B. Case A-01-24, 908 Calvary Circle, TMS# 535-14-00-172. Appeal of zoning official's determination denying the applicant's tree removal permit. STAFF MEMO

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Will Ralston, owner, reviewed the request with the Board. He asked if additional pictures could be submitted for review.

- *Mr. Butner moved for approval for additional pictures to be submitted. Mr. Hopkins seconded the motion. Motion passed on a 4 to 1 vote with Mr. Butner, Mr. Hopkins, Ms. Hall and Mr. Wood in favor; Mr. Barrow opposed.*

- Ms. Michelle Stress, 545 Veranda View, stated that trees should be preserved, particularly well-established trees. She commended staff for a thorough review of the request and reaching out to national experts. She suggested that there appears to be no visual inspection from the engineer as the letter from the engineer seems to rely on the arborist report. She asked that the request be denied.

- Ms. Deidre Kennedy, 971 Cliffwood Drive, stated that she is opposed to the request to remove the historic tree. She suggested that live oak trees are "iconic" to the Town and should only be removed as a last resort. She suggested that removing established trees would remove a valuable ecological resource and the overall health of the citizens of the Town.

- Mr. David Quick, 1502 Village Square, suggested that trees predominantly were planted near homes to provide valuable shade. He expressed concern with the number of trees in the area being removed within the Town. He asked that the request be denied.

- Mr. Mike Tinkey, 208 Venning, asked that the request be denied as there is not justification for the removal. He stated that an independent arborist inspected the tree as well and concluded that the tree is not a hazard. He suggested that well-established trees can increase the value of the property and surrounding properties.

- Mr. Palmer Skoglund, 968 Equestrian Drive, stated that there are other well-established trees on the property. He suggested that the removal of the tree outweighs the safety of the family and asked that the request be allowed.

- There being no further comments, Mr. Wood closed public comment.

- *Mr. Butner moved to uphold the Zoning Official's determination to deny the tree removal request based on the findings that the arborist report and engineer's report lacked justification to approve the request. Mr. Barrow seconded the motion. All in favor.*

C. Case V-38-24, 1608 Diddy Drive, TMS# 560-12-00-131. Request for relief from §156.303(Table) to allow a 4-foot 6-inch encroachment into the rear setback. The ordinance requires a rear setback of 30-feet for this parcel.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Anna Stein, owner representative, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Ms. Hall moved for denial based on the findings that utilization of the property would not be unreasonably restricted. Mr. Barrow seconded the motion. Motion passed on a 4 to1 vote with Mr. Butner, Mr. Barrow, Ms. Hall, and Mr. Wood in favor; Mr. Hopkins opposed.*

The Board convened for a short break at 7:08 pm and reconvened at 7:16 pm.

D. Case V-39-24, 763 3rd Street, TMS# 514-09-00-046. Request for relief from §156.303(Table) to allow an 18-foot encroachment into the front setback for the construction of a new home. The ordinance requires a front setback of 30-feet for this parcel.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Hall stated that she has a social relationship with Mr. Gaskins, but does not consider this a conflict and that she is able to render an impartial, unbiased decision.

- Mr. Brandon Gaskins, attorney for the applicant, reviewed the request with the Board.

- Ms. Pam Ireland, 820 Fiddlers Point, member of HOA, stated that they are opposed to the request. She suggested that there are surrounding properties owned by the applicant, that have similar wetland constraints. She suggested that the property was deemed undevelopable.

- Mr. Mark Joy, 172 Wando Reach Court, asked that the request be denied. He suggested that the owner should not be surprised that the property could not be developed prior to purchasing the property as it was deemed by Charleston County as undevelopable. He suggested that building this "tiny house" in close proximity to the roadway is out of character of the neighborhood.

- Mr. John Propelka, Remley's Park HOA, stated they are opposed to the request. He stated that the property has been deemed undevelopable since the 1980s. He stated that he would be willing to purchase the property at a significant profit for the applicant. He suggested that the applicant was aware that the property was undevelopable and is the owner of several surrounding properties that are similarly classified. He suggested that the house, if allowed to be built, would be out of character for the historic neighborhood. He suggested that this would set a bad precedent.

- Mr. Micah Mallace, 152 5th Ave, suggested that the setbacks are established for a reason. He suggested that if allowed to be developed, it would be significantly out of character for the neighborhood.

- Mr. George Bixler, 144 3rd Ave, suggested that this request should not be approved based on the configuration of the property.

- Ms. Avery Euart, 150 6th Ave, stated that she has a petition of over 150 signatures from surrounding neighbors in opposition of the request. She suggested that the applicant is not a good steward.

- *Mr. Barrow moved for approval of submittal of the petition. Mr. Hopkins seconded the motion. All in favor.*

- Mr. Ed Lee, 158 6th Ave, president of East Cooper Civic Club, stated that he agrees with the previous comments made by the residents. He suggested that Scanlonville is a historic neighborhood, with an established character since the 1800s.

- Mr. Bill Dillard, 768 3rd St, agrees with the previous statements, including that the applicant does not have the good of the neighborhood in mind. He expressed concern with parking for the property as it might impede the roadway. He also expressed concern with traffic and potential accidents at the corner of 3rd St and 5th Ave.

- Ms. Karen Dillard, 768 3rd St, expressed concern with the amount of flooding and traffic on the streets due to the nearby marsh and being the only access for the nearby boat landing.

- Mr. Peter Connelly, 151 5th Ave, suggested that this would create a non-conforming use. He also suggested that financial gain or hardship should not be considered for approval of the variance. He suggested that the property does not meet the criteria for a variance and therefore, the variance should be denied.

- Mr. Gaskins rebutted that some of the comments regarding the applicant's motives cannot be substantiated and should not be considered for this request. He stated that as a property owner, the applicant has the right to develop the property is allowed. He suggested that all criteria has been met and should be granted the variance.

- Mr. Swalhah noted that the property designation by Charleston County is not relevant as the property has been zoned by the Town as R-1. He referenced Rush vs. City of Greenville (SC 1965).

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that it does not meet the criteria for a variance and there is no hardship that was not caused by the applicant's own action; the property was built with the knowledge that it was undevelopable, there are no extraordinary conditions as there are several surrounding properties that are similar and have "hammocks", the conditions*

apply to other property as surrounding properties have similar a configuration with hammocks, utilization of the property would not restricted as it can be utilized but not necessarily in the way the applicant desires, granting the variance would be a detriment to the neighborhood and the character of the neighborhood, which is a historic settlement community and should be preserved, and development of this hammock on this property would be a significant detriment to the character of the neighborhood. Mr. Hopkins seconded the motion. All in favor.

There being no further business, the meeting adjourned at 8:10 pm.

Submitted by,
L. Lynes
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